

opposition nor referred to any relevant paragraph of the evidence filed, the board likewise considered the opposition inadmissible. The board rejected the appellant's argument that the opposition division should have examined the opposition of its own motion.

i) Alleged public prior use

In accordance with G 1/95 (OJ 1996, 615), alleged public prior use does not constitute a ground for opposition under Art. 100(a) EPC but is a fact cited to substantiate such a ground (T 190/05).

An allegation of public prior use will only meet the third requirement of R. 76(2)(c) EPC if it is sufficiently substantiated. It is established case law (e.g. T 328/87, OJ 1992, 701; T 538/89; T 988/91; T 541/92; T 28/93; T 927/98; T 900/99; T 1022/99; T 190/05; T 25/08; T 1856/11; T 2037/18) that, when an opposition ground is based on an allegation of public prior use, the requirements of R. 76(2)(c) EPC are fulfilled if the notice of opposition indicates, within the opposition period, the facts which make it possible to determine

- the date of prior use ("when"), in order to ascertain its "prior" character;
- the object of the use ("what"), in order to examine its relevance, and
- the circumstances relating to the alleged use ("how") in order to confirm its availability to the public.

The notice of opposition must also indicate the arguments and evidence in support of the alleged prior use.

In T 1856/11 the board took the information contained in the supporting documents filed during the opposition period into account for establishing the required details.

An **abstract indication** of the subject-matter of the prior use is generally insufficient. Instead, the opponent must compare its features with those of the contested claim and demonstrate the technical parallels between them (see e.g. T 28/93, T 25/08, T 426/08). This can, however, be dispensed with in straightforward cases in which the facts are immediately self-evident to the average skilled person (T 1069/96, T 25/08, T 426/08).

In T 538/89 the board stressed that the evidence offered in support of public prior use could be submitted after expiry of the period for opposition since R. 55(c) EPC 1973 (R. 76(2)(c) EPC) only required that it be indicated (see also e.g. T 234/86, OJ 1989, 79; T 752/95; T 249/98; T 1022/99 and T 25/08). According to the board, **nomination of a witness** for subsequent examination is deemed to constitute indication of evidence (see also T 28/93, T 988/93 and T 241/99). In T 1553/07 the board held that the naming of a witness to be heard later is to be regarded as a sufficient indication of evidence as long as it is clear for what assertions of facts the witness is being named. There is no need also to indicate what the witness is able to say about the alleged facts.

A distinction must be made between examining the admissibility of the opposition and its substantive merit. The information relating to the "when", the "what" and the "how" of the circumstances surrounding prior use is all that the patent proprietor and the opposition division need in order to understand the case of the opponent and for the opposition to be admissible. The rest, i.e. whether the alleged facts were or would be sufficiently proven through additional filings in the course of the opposition proceedings, is a question of allowability in terms of substantive law. Thus, establishing that the alleged prior use was indeed public has little bearing on the **admissibility** of the opposition, but could be significant for assessing its **allowability** in terms of substantive law (see T 786/95, T 1022/99, T 1553/07, T 25/08, T 1856/11, T 2037/18).

Case law on the issue of whether sufficient details of the "when, what and how" of the prior use have been submitted can also be found in other contexts, namely when a board needs to establish whether (and, if so, at what point) a late-filed prior use had been sufficiently substantiated to be considered in the proceedings (see e.g. T 441/91, T 97/92, T 611/97, T 460/13, T 1955/13; on the admission of late filed submissions, see in this chapter IV.C.4.) or whether facts had been sufficiently substantiated for evidence offered to be taken (see e.g. T 1271/06, citing T 297/00).

Addressing the substantiation requirement under R. 76(2)(c) EPC, the board in T 2037/18 reiterated that, under the rules on the burden of proof ("Darlegungs- und Beweislast") applicable in EPC proceedings, each of the parties had to present and prove the facts in their favour (T 219/83, T 270/90). It then explained that the sale of a ready-to-use object to a third party was the typical case of something being made publicly available (T 482/89), since the third party usually had an interest in using the object as they saw fit. Thus, when an object was sold to a customer, it and its identifiable technical features became publicly available on its handover to that buyer (positive fact) unless the buyer was bound by a confidentiality obligation (negative fact). Accordingly, it was for the opponent to assert and prove such a handover to a buyer (T 326/93), whereas it was for the patent proprietor to assert and prove that this buyer had been bound by any confidentiality obligation (T 221/91, T 969/90), as was reflected in the principle "negativa non sunt probanda", i.e. a negative need not be proved, recognised in the boards' case law (R 15/11, R 4/17). The board went on to observe that the burden of proof could shift but not until the party initially bearing it had produced prima facie evidence or argued a typical course of events supporting a presumption as to the facts (T 570/08). A patent proprietor's submissions could therefore place a secondary burden of proof on the opponent, but only from that point on ("ex nunc") and so without any bearing on what it was required to substantiate in its notice of opposition under the third point of R. 76(2)(c) EPC.

Several decisions note that specification of the circumstances of the act of use also requires that the opponent indicates **"to whom"** the subject-matter was made available (see e.g. T 522/94, OJ 1998, 421; T 339/01; T 1553/07; T 2010/08; T 1927/08). In T 241/99, for instance, the board considered it insufficient for the purposes of R. 55(c) EPC 1973 (R. 76(2)(c) EPC) that, in the event of a purported **sale to a small, closed group of customers**, these were identified only by a coded indication (list of numbers). This was different from the **sale of mass-produced goods to anonymous buyers** and resembled rather the case of a single sale, for which the requirements of

R. 76(2)(c) EPC were met only if the name and address of the sole buyer were indicated within the opposition period.

Citing this decision, the board in T. 55/01 noted in the context of the applicable standard of proof that case law had taken into account that cases of **mass-produced consumer goods** which are widely advertised and offered for sale to customers who often remained anonymous may require a different treatment. In the case at issue no allegations concerning the identity of the purchasers had been made and no proof concerning this matter produced. The sale of the mass-produced product on the market and the distribution of the corresponding service manual was nevertheless considered as proven. See also T. 414/17, where the board considered the indication that a product (intended for the mass market) was made available by advertisement and offer for sale to be sufficient to substantiate the circumstances.

The evaluation of evidence in cases of alleged public prior use is dealt with in detail in chapter III.G.4.3.2.

j) Non-patent literature and oral disclosures

In T. 511/02, concerning the opponent's duty of substantiation, it had not been indicated when and how **fitting and installation instructions** cited against the patent had been made available to the public. Since this factor was crucial to the establishment of whether they formed part of the prior art and thus whether they could actually be cited against the patent, no adequate indication had been given of the relevant facts and evidence (see also T. 1271/06 and T. 109/11 for cases where the requirements of R. 55(c) EPC 1973 (R. 76(2)(c) EPC) were found not to be met; see T. 1688/12 for a case where these requirements were considered to be fulfilled).

In T. 782/04 the board noted however that the respondent had to apply a reasonable amount of understanding by reading the notice of opposition as required by the jurisprudence. In the case in hand the **brochure** produced by a company to illustrate a product to potential customers bore the notice "printed in Japan 73", whereas the priority date of the patent in suit was ca. 18 years later. The board considered that the allegations were sufficiently substantiated. See also T. 1236/13 (concerning documentation available on the internet) where the allegations as to which information carrier was used, the publication date and who was the public could be derived from document D6.

In T. 16/14, the board considered an **author's copy** to be sufficient evidence of what was in the article actually published, since the publisher had at any rate been specified in such a way that a check could have been performed without undue burden. Besides, the appellant had not only already offered in its notice of opposition to produce the actually published article but also gone on to do so (E1a).

Where an **oral disclosure** is cited as prior art, the opposition division and the patent proprietor must be provided with sufficient details of the facts asserted and the supporting evidence to determine the date and content of the disclosure and the circumstances in which it was made public (T. 406/92).

2.2.9 Other requirements for notice of opposition

a) Translation

In T 193/87 (OJ 1993, 207) the board found that if a notice of opposition was filed in a language of a contracting state other than an official language of the EPO and the prescribed **translation** was not filed in due time (Art. 14(4) and (5) EPC 1973; Art. 14(4) EPC), the notice should be deemed not to have been received, and the opposition fee was to be refunded (following T 323/87, OJ 1989, 343). Since the opposition had not come into effect, there was no question of examining its admissibility under R. 56(1) EPC 1973 (R. 77(1) EPC).

b) Signature

In T 960/95 the notice of opposition was filed without having been signed. The board stated that a notice of opposition should be duly signed (R. 36(3), first sentence, EPC 1973, R. 61a EPC 1973; R. 50(3), first sentence, EPC, R. 86 EPC). The omission of the signature was remedied within the time limit set by the opposition division, and the notice of opposition therefore retained its original date of receipt (R. 36(3), third sentence, EPC 1973; R. 50(3), third sentence, EPC). See also T 1165/03 and T 1850/19, which confirmed the application of R. 50(3) EPC (former R. 36(3) EPC 1973).

c) Authorisation

In T 1700/11, the board observed that, where a European representative filed an opposition on a party's behalf but then failed to file a signed authorisation in due time after being asked to do so by the board, the opposition had to be deemed not filed (R. 152(6) EPC). On the topic of representation, see also chapter III.V.

2.3. Procedural aspects of examination of admissibility

2.3.1 Formalities officers' powers in opposition proceedings

In opinion G 1/02 (OJ 2003, 165), the Enlarged Board of Appeal examined the power of formalities officers to decide on the consequences of late payment of the opposition fee. Taking the view that T 295/01 (OJ 2002, 251) and T 1062/99 were divergent, the President asked the Enlarged Board of Appeal to consider whether points 4 and 6 of the Notice of the Vice-President of Directorate-General 2 of the EPO of 28.04.1999 (OJ 1999, 506) conflicted with provisions of a higher level (Referral by the President of the EPO, OJ 2002, 466). The Enlarged Board stated that the provisions of the Notice were valid on the basis of R. 9(3) EPC 1973 (R. 11(3) EPC), under which formalities officers could be entrusted with duties falling to the examining and opposition divisions and involving **no technical or legal difficulties**. It therefore concluded that points 4 and 6 of the Notice of 28.04.1999 did not conflict with provisions of a higher level.

2.3.2 Admissibility of opposition to be checked at every stage

The admissibility of the opposition must be checked *ex officio* in every phase of the opposition and ensuing appeal proceedings (T. 289/91, OJ 1994, 649 and e.g. T. 522/94, OJ 1998, 421; T. 646/13, stating that this is established case law, and T. 414/17). On the other hand, as highlighted in T. 522/94, the requirement of admissibility must not be circumvented by overemphasising the *ex officio* principle and shifting the burden of establishing the case from the opponent to the opposition division.

2.3.3 Rejection of opposition as inadmissible

In T. 222/85 (OJ 1988, 128) the board stated that a communication under R. 57(1) EPC 1973 (R. 79(1) EPC) indicating the admissibility of an opposition was not a decision of the opposition division, and the sending of such a communication did not prevent the subsequent rejection of the notice of opposition as inadmissible under R. 56(1) EPC 1973 (R. 77(1) EPC), for example if the admissibility was challenged by the patent proprietor (see also T. 621/91).

As soon as an opposition had been rejected as inadmissible, the opposition procedure was regarded as legally terminated and substantive examination could no longer be initiated. The inadmissibility of an opposition, when finally decided, or an appeal, had the effect of transferring the European patent to the national jurisdiction of the designated states, which then assumed sole responsibility for assessing the patent's validity with reference to their own legislation. The board therefore came to the conclusion that it was inconsistent with the procedural principle referred to above for the decision rejecting the opposition as inadmissible to consider that opposition's merits. Remarks on substantive matters in a decision rejecting the opposition as inadmissible had no legal effect and should, in principle, be avoided (T. 925/91, OJ 1995, 469; see also T. 328/87, OJ 1992, 701).

3. Substantive examination of opposition

3.1. Introduction

In G. 9/91 and G. 10/91 (OJ 1993, 408 and 420) the Enlarged Board held that R. 76(2)(c) EPC (R. 55(c) EPC 1973) made sense only when interpreted as having the **double function** of governing (together with other provisions) the admissibility of the opposition and of simultaneously establishing the legal and factual framework within which the substantive examination of the opposition was in principle to be conducted.

The **legal framework** of an opposition case is defined solely by (i) the extent to which the patent is actually opposed and (ii) the grounds upon which it is opposed, whilst its **factual framework** is determined by the facts, evidence and arguments adduced and set out in the notice of opposition pursuant to R. 76(2)(c) EPC (T. 737/92; see also T. 1900/07 with regard to the legal framework). A distinction has to be made between the two main requirements of R. 76(2)(c) EPC, i.e. the indication of the **extent** to which the European patent is opposed and the **grounds** for opposition.